

IN THE SENATE

SENATE BILL NO. 1257

BY HEALTH AND WELFARE COMMITTEE

AN ACT

RELATING TO CHILD PROTECTION; AMENDING SECTION 16-1602, IDAHO CODE, TO
DEFINE A TERM; AMENDING SECTION 16-2005, IDAHO CODE, TO REVISE PROVI-
SIONS REGARDING CONDITIONS UNDER WHICH TERMINATION MAY BE GRANTED; AND
DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 16-1602, Idaho Code, be, and the same is hereby
amended to read as follows:

16-1602. DEFINITIONS. For purposes of this chapter:

(1) "Abused" means any case in which a child has been the victim of:

(a) Conduct or omission resulting in skin bruising, bleeding, mal-
nutrition, burns, fracture of any bone, head injury, soft tissue
swelling, failure to thrive or death, and such condition or death is not
justifiably explained, or where the history given concerning such con-
dition or death is at variance with the degree or type of such condition
or death, or the circumstances indicate that such condition or death may
not be the product of an accidental occurrence; or

(b) Sexual conduct, including rape, molestation, incest, commercial
sexual activity, obscene or pornographic photographing, filming or de-
picture for commercial purposes, human trafficking as defined in chap-
ter 86, title 18, Idaho Code, or other similar forms of sexual exploita-
tion harming or threatening the child's health or welfare or mental in-
jury to the child.

(2) "Abandoned" means the failure of the parent to maintain a normal
parental relationship with his child including, but not limited to, reason-
able support or regular personal contact. Failure to maintain this rela-
tionship without just cause for a period of one (1) year shall constitute
prima facie evidence of abandonment.

(3) "Adaptive equipment" means any piece of equipment or any item that
is used to increase, maintain or improve the parenting capabilities of a par-
ent with a disability.

(4) "Adjudicatory hearing" means a hearing to determine:

(a) Whether the child comes under the jurisdiction of the court pur-
suant to the provisions of this chapter;

(b) Whether continuation of the child in the home would be contrary to
the child's welfare and whether the best interest of the child requires
protective supervision or vesting legal custody of the child in an au-
thorized agency.

(5) "Age of developmentally appropriate" means:

(a) Activities that are generally accepted as suitable for children of
the same chronological age or level of maturity or that are determined
to be developmentally appropriate for a child, based on the development

1 of cognitive, emotional, physical and behavioral capacities that are
2 typical for an age or age group; and

3 (b) In the case of a specific child, activities or items that are suit-
4 able for the child based on the developmental stages attained by the
5 child with respect to the cognitive, emotional, physical and behavioral
6 capacities of the child.

7 (6) "Aggravated circumstances" includes, but is not limited to:

8 (a) Circumstances in which the parent has engaged in any of the follow-
9 ing:

10 (i) Abandonment, chronic abuse or chronic neglect of the child.
11 Chronic neglect or chronic abuse of a child shall consist of abuse
12 or neglect that is so extreme or repetitious as to indicate that
13 return of the child to the home would result in unacceptable risk
14 to the health and welfare of the child.

15 (ii) Sexual abuse against a child of the parent. Sexual abuse, for
16 the purposes of this section, includes any conduct described in
17 section 18-1506, 18-1506A, 18-1507, 18-1508, 18-1508A, 18-6101,
18 or 18-6604, or chapter 86, title 18, Idaho Code.

19 (iii) Torture of a child. Any conduct listed in section
20 18-8303(1), Idaho Code; battery or an injury to a child that re-
21 sults in serious or great bodily injury to a child; voluntary
22 manslaughter of a child, or aiding or abetting such voluntary
23 manslaughter, soliciting such voluntary manslaughter or attempt-
24 ing or conspiring to commit such voluntary manslaughter;

25 (b) The parent has committed murder, aided or abetted a murder, so-
26 licited a murder or attempted or conspired to commit murder; or

27 (c) The parental rights of the parent to another child have been termi-
28 nated involuntarily.

29 (7) "Authorized agency" means the department, a local agency, a person,
30 an organization, corporation, benevolent society or association licensed
31 or approved by the department or the court to receive children for control,
32 care, maintenance or placement.

33 (8) "Caregiver" means a foster parent with whom a child in foster care
34 has been placed or a designated official for a child care institution in
35 which a child in foster care has been placed.

36 (9) "Case plan hearing" means a hearing to approve, modify or reject the
37 case plan as provided in section 16-1621, Idaho Code.

38 (10) "Child" means an individual who is under the age of eighteen (18)
39 years.

40 (11) "Child advocacy center" or "CAC" means an organization that ad-
41 heres to national best practice standards established by the national
42 membership and accrediting body for children's advocacy centers and that
43 promotes a comprehensive and coordinated multidisciplinary team response to
44 allegations of child abuse by maintaining a child-friendly facility at which
45 appropriate services are provided. These services may include forensic in-
46 terviews, forensic medical examinations, mental health services and other
47 related victim services.

48 (12) "Circumstances of the child" includes, but is not limited to, the
49 joint legal custody or joint physical custody of the child.

50 (13) "Commit" means to transfer legal and physical custody.

1 (14) "Concurrent planning" means a planning model that prepares for and
2 implements different outcomes at the same time.

3 (15) "Court" means district court or magistrate division thereof or, if
4 the context requires, a magistrate or judge thereof.

5 (16) "Custodian" means a person, other than a parent or legal guardian,
6 to whom legal or joint legal custody of the child has been given by court or-
7 der.

8 (17) "Department" means the department of health and welfare and its au-
9 thorized representatives.

10 (18) "Disability" means, with respect to an individual, any mental or
11 physical impairment that substantially limits one (1) or more major life
12 activities of the individual including, but not limited to, self-care, man-
13 ual tasks, walking, seeing, hearing, speaking, learning or working, or a
14 record of such an impairment, or being regarded as having such an impairment.
15 Disability shall not include transvestism, transsexualism, pedophilia,
16 exhibitionism, voyeurism, other sexual behavior disorders, or substance use
17 disorders, compulsive gambling, kleptomania or pyromania. Sexual prefer-
18 ence or orientation is not considered an impairment or disability. Whether
19 an impairment substantially limits a major life activity shall be determined
20 without consideration of the effect of corrective or mitigating measures
21 used to reduce the effects of the impairment.

22 (19) "Family or household member" shall have the same meaning as in sec-
23 tion 39-6303(6), Idaho Code.

24 (20) "Foster care" means twenty-four (24) hour substitute parental care
25 for children placed away from their parents or guardians by persons who may
26 or may not be related to the children and for whom the state agency has place-
27 ment and care responsibility.

28 (21) "Foster parent" means a person or persons licensed to provide fos-
29 ter care.

30 (22) "Grant administrator" means the supreme court or any organization
31 or agency as may be designated by the supreme court in accordance with such
32 procedures as may be adopted by the supreme court. The grant administrator
33 shall administer funds from the guardian ad litem account in accordance with
34 the provisions of this chapter.

35 (23) "Guardian ad litem" means a person appointed by the court pursuant
36 to a guardian ad litem volunteer program to act as special advocate for a
37 child under this chapter.

38 (24) "Guardian ad litem coordinator" means a person or entity receiving
39 moneys from the grant administrator for the purpose of carrying out any of
40 the duties set forth in section 16-1632, Idaho Code.

41 (25) "Guardian ad litem program" means the program to recruit, train and
42 coordinate volunteer persons to serve as guardians ad litem for abused, ne-
43 glected or abandoned children.

44 (26) "Homeless," as used in this chapter, shall mean that the child is
45 without adequate shelter or other living facilities, and the lack of such
46 shelter or other living facilities poses a threat to the health, safety or
47 well-being of the child.

48 (27) "Idaho network of children's advocacy centers" means an organiza-
49 tion that provides education and technical assistance to child advocacy cen-

ters and to interagency multidisciplinary teams developed pursuant to section 16-1617, Idaho Code.

(28) "Law enforcement agency" means a city police department, the prosecuting attorney of any county, state law enforcement officers, or the office of a sheriff of any county.

(29) "Legal custody" means a relationship created by court order, which vests in a custodian the following rights and responsibilities:

(a) To have physical custody and control of the child, and to determine where and with whom the child shall live.

(b) To supply the child with food, clothing, shelter and incidental necessities.

(c) To provide the child with care, education and discipline.

(d) To authorize ordinary medical, dental, psychiatric, psychological, or other remedial care and treatment for the child, including care and treatment in a facility with a program of services for children, and to authorize surgery if the surgery is deemed by two (2) physicians licensed to practice in this state to be necessary for the child.

(e) Where the parents share legal custody, the custodian may be vested with the custody previously held by either or both parents.

(30) "Mental injury" means a substantial impairment in the intellectual or psychological ability of a child to function within a normal range of performance and/or behavior, for short or long terms.

(31) "Neglected" means a child:

(a) Who is without proper parental care and control, or subsistence, medical or other care or control necessary for his well-being because of the conduct or omission of his parents, guardian or other custodian or their neglect or refusal to provide them; however, no child whose parent or guardian chooses for such child treatment by prayers through spiritual means alone in lieu of medical treatment shall be deemed for that reason alone to be neglected or lack parental care necessary for his health and well-being, but this subsection shall not prevent the court from acting pursuant to section 16-1627, Idaho Code; or

(b) Whose parent, guardian or other custodian is unable to discharge the responsibilities to and for the child and, as a result of such inability, the child lacks the parental care necessary for his health, safety or well-being; or

(c) Who has been placed for care or adoption in violation of law; or

(d) Who is without proper education because of the failure to comply with section 33-202, Idaho Code.

(32) "Order to prevent removal," as described in section 16-1611(5), Idaho Code, means an order to allow a child to remain in the child's present surroundings when there is reasonable cause to believe the child is safe in the sole care of one (1) parent, legal guardian, or legal custodian and when there is alleged neglect or abuse by another parent, legal guardian, or legal custodian.

(33) "Permanency hearing" means a hearing to review, approve, reject or modify the permanency plan of the department and to review reasonable efforts in accomplishing the permanency plan.

(34) "Permanency plan" means a plan for a continuous residence and maintenance of nurturing relationships during the child's minority.

1 (35) "Protective supervision" is a legal status created by court order
2 in a child protective case whereby the child is in the legal custody of his or
3 her parent(s), guardian(s) or other legal custodian(s), subject to supervi-
4 sion by the department.

5 (36) "Psychotropic medication" means a drug prescribed to affect psy-
6 chological functioning, perception, behavior or mood. Psychotropic medi-
7 cations include, but are not limited to, antidepressants, mood stabilizers,
8 antipsychotics, antianxiety medications, sedatives and stimulants.

9 (37) "Qualified individual" means a trained professional or licensed
10 clinician who is not connected to or affiliated with any placement setting
11 in which children are placed by the department and who is not an employee of
12 child and family services, unless a waiver has been approved by the autho-
13 rized agency.

14 (38) "Qualified residential treatment program" means a program that has
15 a trauma-informed treatment model designed to address the needs of children
16 with serious emotional or behavioral disorders or disturbances, is able to
17 implement the treatment identified for the child by the assessment of the
18 child required under section 16-1619A(2), Idaho Code, and is licensed and
19 accredited in accordance with state and federal law.

20 (39) "Reasonable and prudent parent standard" means the standard of
21 care characterized by careful and sensible parental decisions that main-
22 tain the health, safety and best interests of a child while simultaneously
23 encouraging the emotional and developmental growth of the child that a care-
24 giver shall use when determining whether to allow a child in foster care
25 under the responsibility of the state to participate in extracurricular,
26 enrichment, cultural or social activities.

27 (40) "Relative" means a child's grandparent, great grandparent, aunt,
28 great aunt, uncle, great uncle, brother-in-law, sister-in-law, first
29 cousin, sibling and half-sibling.

30 (41) "Residual parental rights and responsibilities" means those
31 rights and responsibilities remaining with the parents after the transfer of
32 legal custody including, but not necessarily limited to, the right of visi-
33 tation, the right to consent to adoption, the right to determine religious
34 affiliation, the right to family counseling when beneficial, and the respon-
35 sibility for support.

36 (42) "Shelter care" means places designated by the department for tem-
37 porary care of children pending court disposition or placement.

38 (43) "Supportive services," as used in this chapter, shall mean ser-
39 vices that assist parents with a disability to compensate for those aspects
40 of their disability that affect their ability to care for their child and
41 that will enable them to discharge their parental responsibilities. The
42 term includes specialized or adapted training, evaluations or assistance
43 with effectively using adaptive equipment and accommodations that allow
44 parents with a disability to benefit from other services including, but not
45 limited to, Braille texts or sign language interpreters.

46 (44) (a) "Visitation" means contact between a child and the child's par-
47 ent, guardian, custodian, or siblings. Visitation includes in-person
48 visitation, video communication, telephonic contact, and written com-
49 munication.

(b) When the department has a substantiated claim of sexual abuse or physical abuse against the parent, guardian, or custodian, in-person visitation shall not be permitted unless the court finds that in-person visitation is in the best interest of the child. The court shall set forth written conditions for such in-person visitation that ensures the visitation is safe and does not harm the child's physical or mental health. Unless the court finds good cause to deviate, the written conditions shall include:

(i) The parent, guardian, or custodian shall not be left alone with the child for any reason, including restroom breaks;

(ii) The parent, guardian, or custodian shall not allow the child to sit on the person's, guardian's, or custodian's lap when there is substantiated sexual abuse; and

(iii) The parent, guardian, or custodian shall not be allowed to engage in secret conversations or other communication that cannot be monitored in real time.

(c) For the purposes of this subsection:

(i) "Physical abuse" is as defined in subsection (1) (a) of this section, where the abuse caused life-threatening, disabling, or disfiguring injury or damage, or required medical treatment as recommended by a medical provider.

(ii) "Sexual abuse" is as defined in subsection (1) (b) of this section and includes "sexual exploitation" as described in sections 18-1507 and 18-1507A, Idaho Code.

(iii) "Substantiated claim" means:

1. Abuse was witnessed by an employee of the department;

2. A court determines in an adjudicatory hearing that an abused child comes within the jurisdiction of this chapter;

3. An alleged offender confessed;

4. Abuse was corroborated by physical or medical evidence;
or

5. Abuse has been established by a preponderance of the evidence.

SECTION 2. That Section 16-2005, Idaho Code, be, and the same is hereby amended to read as follows:

16-2005. CONDITIONS UNDER WHICH TERMINATION MAY BE GRANTED.

(1) (a) The court may grant an order terminating the relationship where it finds that termination of parental rights is in the best interests of the child and that one (1) or more of the following conditions exist:

(i) The parent has abandoned the child;

(ii) The parent has neglected or abused the child;

(iii) The presumptive parent is not the biological parent of the child;

(iv) The parent is unable to discharge parental responsibilities and such inability will continue for a prolonged indeterminate period and will be injurious to the health, morals or well-being of the child; ~~or~~

(v) The parent has been incarcerated and is likely to remain incarcerated for a substantial period of time during the child's minority-; or

(vi) The parent is incarcerated at the time of the termination hearing and has been or likely will remain incarcerated for a substantial portion of the child's minority, and termination is initiated by the department for such child who is in the legal custody of the department.

(b) For terminations arising from a case filed pursuant to chapter 16, title 16, Idaho Code, additional factors that inform what is in the best interest of the child, beyond those otherwise identified by the courts, include:

(i) The parent's efforts to improve the parent's capacity to safely reunify with the child;

(ii) The parent's demonstrated ability to live a law-abiding life, excepting infraction violations; and

(iii) When the child has formed a strong and positive bond with the child's substitute caretaker, the strong and positive bond has existed for a substantial portion of the child's life, the removal of the child from the substitute caretaker would likely cause serious psychological harm to the child, and the parent lacks the capacity to meet the needs of the child upon removal.

(2) The court may grant an order terminating the relationship and may rebuttably presume that such termination of parental rights is in the best interests of the child where:

(a) The parent caused the child to be conceived as a result of rape, incest, lewd conduct with a minor child under the age of sixteen (16) years, or sexual abuse of a child under the age of sixteen (16) years, as defined in sections 18-6101, 18-1508, 18-1506, and 18-6601, Idaho Code;

(b) The following circumstances are present:

(i) Abandonment, chronic abuse or chronic neglect of the child. Chronic neglect or chronic abuse of a child shall consist of abuse or neglect that is so extreme or repetitious as to indicate continuing the relationship would result in unacceptable risk to the health and welfare of the child;

(ii) Sexual abuse against a child of the parent. Sexual abuse, for the purposes of this section, includes any conduct described in section 18-1506, 18-1506A, 18-1507, 18-1508, 18-1508A, 18-6101, or 18-6604, Idaho Code;

(iii) Torture of a child; any conduct described in the code sections listed in section 18-8303(1), Idaho Code; battery or an injury to a child that results in serious or great bodily injury to a child; voluntary manslaughter of a child, or aiding or abetting such voluntary manslaughter, soliciting such voluntary manslaughter or attempting or conspiring to commit such voluntary manslaughter;

(iv) The parent has committed murder, aided or abetted a murder, solicited a murder or attempted or conspired to commit murder; or

(c) The court determines the child to be an abandoned infant, except in a parental termination action brought by one (1) parent against another parent.

(3) The court shall not grant an order terminating the relationship based on the child's immunization status.

(4) The court may grant an order terminating the relationship if termination is found to be in the best interest of the parent and child.

(5) The court may grant an order terminating the relationship where a consent to termination in the manner and form prescribed by this chapter has been filed by the parent or parents of the child in conjunction with a petition for adoption initiated by the person or persons proposing to adopt the child, where the consent to termination has been filed by a licensed adoption agency, or where the termination is initiated by the department pertaining to a child who is in the legal custody of the department, and no subsequent hearing on the merits of the petition shall be held. Consents required by this chapter must be witnessed by a district judge or magistrate of a district court, or equivalent judicial officer of the state, where a person consenting resides or is present, whether within or without the county, and shall be substantially in the following form:

IN THE DISTRICT COURT OF THE.... JUDICIAL DISTRICT OF THE STATE OF IDAHO, IN AND FOR THE COUNTY OF....

In the matter of the termination)
 of the parental rights of)
)
)

I (we), the undersigned, being the.... of...., do hereby give my (our) full and free consent to the complete and absolute termination of my (our) parental right(s), to the said...., who was born....., unto...., hereby relinquishing completely and forever, all legal rights, privileges, duties and obligations, including all rights of inheritance to and from the said...., and I (we) do hereby expressly waive my (our) right(s) to hearing on the petition to terminate my (our) parental relationship with the said...., and respectfully request the petition be granted.

DATED:....., 20..

.....

STATE OF IDAHO)
) ss.
 COUNTY OF....)

On this.... day of...., 20..., before me, the undersigned..... (Judge or Magistrate) of the District Court of the.... Judicial District of the state of Idaho, in and for the county of...., personally appeared...., known to me (or proved to me on the oath of....) to be the person(s) whose name(s) is (are) subscribed to the within instrument, and acknowledged to me that he (she, they) executed the same.

IN WITNESS WHEREOF, I have hereunto set my hand and affixed my official seal the day and year in this certificate first above written.

..... (District Judge or Magistrate)

1 (6) The court shall accept a consent or a surrender and release executed
2 in another state if:

3 (a) It is witnessed by a magistrate or district judge of the state where
4 signed; or

5 (b) The court receives an affidavit or a certificate from a court of
6 comparable jurisdiction stating that the consent or the surrender and
7 release was executed in accordance with the laws of the state in which it
8 was executed, or the court is satisfied by other showing that the con-
9 sent or surrender and release was executed in accordance with the laws
10 of the state in which it was executed.

11 (7) The court shall accept a termination or relinquishment from a sis-
12 ter state that has been ordered by a court of competent jurisdiction under
13 like proceedings or in any other manner authorized by the laws of a sister
14 state. In a state where the father has failed to file notice of claim to pa-
15 ternity and willingness to assume responsibility as provided for pursuant to
16 the laws of such state, and where such failure constitutes an abandonment of
17 such child and constitutes a termination or relinquishment of the rights of
18 the putative father, the court shall accept such failure as a termination in
19 this state without further hearing on the merits if the court is satisfied
20 that such failure constitutes a termination or relinquishment of parental
21 rights pursuant to the laws of that state.

22 (8) The court shall hold a hearing unless:

23 (a) A consent to termination signed by the parent or parents of the
24 child has been filed by an adoption agency licensed in the state of
25 Idaho;

26 (b) A consent to termination was filed in conjunction with a petition
27 for adoption of the child; or

28 (c) A consent to termination signed by the parent or parents of the
29 child has been filed and the termination is initiated by the department
30 pertaining to a child who is in legal custody of the department.

31 (9) If the parent has a disability, as defined in this chapter, the par-
32 ent shall have the right to provide evidence to the court regarding the man-
33 ner in which the use of adaptive equipment or supportive services will enable
34 the parent to carry out the responsibilities of parenting the child. Nothing
35 in this section shall be construed to create any new or additional obligation
36 on state or local governments to purchase or provide adaptive equipment or
37 supportive services for parents with disabilities.

38 SECTION 3. An emergency existing therefor, which emergency is hereby
39 declared to exist, this act shall be in full force and effect on and after
40 July 1, 2026.